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Nuclear Security in Conflict: Zaporizhzhia NPP and Protection of Nuclear Installations in War Zones

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Delegation: Republic of India

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Distinguished Presidencies
Miss Ashley Moreno
Miss María Caridad Noboa
Miss Nicol Solís

The Delegation of India conveys its highest consideration to the honorable Presidencies and expresses its sincere appreciation for their leadership and dedication in guiding the work of this Security Council on the agenda "Nuclear Security in Conflict: Zaporizhzhia NPP and Protection of Nuclear Installations in War Zones."

India reaffirms its firm commitment to the preservation of international peace and security, the protection of civilian populations, and the strengthening of multilateral cooperation as essential pillars for addressing the grave risks posed to nuclear facilities in armed conflicts. With deep awareness of the critical situation surrounding the Zaporizhzhia Nuclear Power Plant, the delegation approaches this debate with a spirit of constructive dialogue, responsibility, and adherence to international law.

Drawing from its longstanding engagement in nuclear safety, non-proliferation, and peaceful uses of atomic energy, India stands ready to share best practices and contribute to practical, balanced, and cooperative mechanisms aimed at safeguarding nuclear installations during wartime. The delegation emphasizes that any comprehensive solution must place human security at the forefront, fully aligned with humanitarian principles and the standards of the United Nations system.

The Delegation of India reiterates its willingness to work collaboratively with all Member States and expresses its deep respect and cooperation toward the distinguished Presidencies, confident that the deliberations of this committee will lead to concrete and sustainable outcomes for international peace and nuclear safety.

Respectfully,

Droupadi Murmu

I. Republic of India

A. Geographic location

India is located in South Asia. It covers an area of approximately 3.28 million km^2, with land borders totaling about 15,200 km and a coastline of roughly 7,500 km.

B. Population

The population is close to 1.45 billion inhabitants (according to UN estimates). Population density is high (around 488 inhabitants/km^2). Indian society is highly diverse in linguistic and ethnic terms.

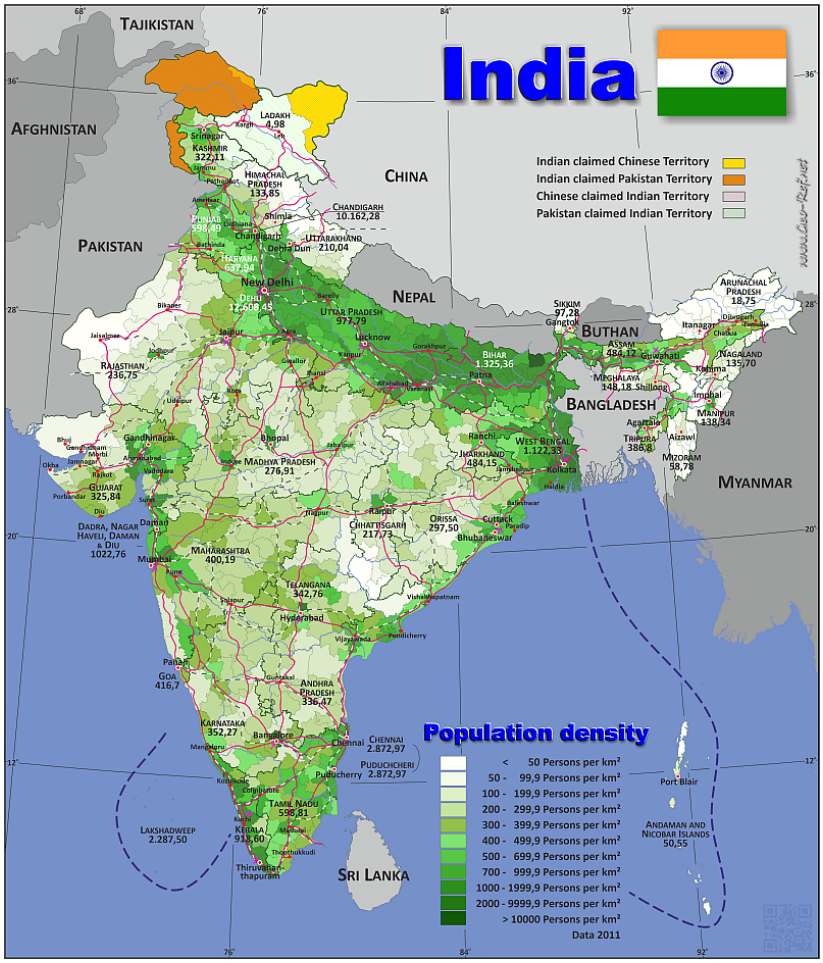

Figure 1: Population density of the Republic of India (people per km^2).

C. Capital and major cities

The capital is New Delhi. Other major cities include Mumbai (Bombay), Bangalore, Chennai, and Hyderabad, among others.

D. Political system

India is a federal republic with a parliamentary democratic system. It has an extensive Constitution that sets out fundamental rights and the structure of the State. The Parliament is bicameral: the Lok Sabha (lower house) and the Rajya Sabha (upper house).

E. Economy

India has a mixed economy with public participation in strategic sectors and a large private and services sector. Approximate sector shares are:

- Agriculture: 17.7%
- Industry: 27.6%
- Services: 54.7%

India has experienced sustained GDP growth in recent years and holds significant reserves (2025 figures report reserves in the hundreds of billions of dollars range).

F. Environment and biodiversity

About 23.2% of the national territory is classified as forest area. India hosts very rich biodiversity, with more than 45,000 reported plant species and biologically important regions such as the eastern Himalayas and the Western Ghats.

G. Socio-economic challenges

Despite economic growth, social and economic inequalities persist. A substantial share of employment is informal, which limits access to formal social protections. Female labor force participation remains relatively low and multidimensional poverty continues to be a challenge in several regions.

H. Human development

According to UN reports, India is placed in the medium human development category. There have been improvements in maternal health, child mortality, and nutrition, although significant challenges remain in these areas.

I. International relations and the UN

India has been a member of the United Nations since 30 October 1945. It actively supports the Sustainable Development Goals and maintains cooperation programs with the UN that prioritize development in states with greater needs (for example, Bihar, Jharkhand, and Uttar Pradesh).

II. Official Position

A. Background

On 4 March 2022, Russian military forces occupied the Zaporizhzhia Nuclear Power Plant (ZNPP), the largest in Europe, during the invasion of Ukraine, and on 5 October 2022 Russia declared ownership of the facility (Zurita, 2024). Before the war, its six VVER reactors produced 27% of Ukraine's national electricity, but since September 2022 they have been in a complete shutdown for safety and operational degradation reasons (Zurita, 2024).

Historically there have been isolated attacks on nuclear facilities (Osirak in Iraq, Bushehr in Iran, Krško in Slovenia), but the Zaporizhzhia case is unique because of the prolonged occupation and the direct militarization of the site, making it the epicenter of an international nuclear security crisis (Fedchenko, 2023; Zurita, 2024).

Impact on Nuclear Safety and Protection

The military occupation has exposed ZNPP to exceptional risks, exceeding any precedent:

Violation of international law The occupation and military use of the plant violate Article 56 of Additional Protocol I (1977) to the 1949 Geneva Conventions, which protects installations dangerous to the civilian population during armed conflicts. Russia withdrew its ratification of this protocol in 2019, which exacerbates the lack of specific legal protection (Przybylak, 2024).

Operational and human degradation The isolation of staff, allegations of coercion and mistreatment of workers, loss of contact with Ukrainian regulators, and the confirmed presence of heavy weaponry increase the risk of a nuclear accident and undermine the principles of safe nuclear governance recognized by the IAEA (International Atomic Energy Agency (IAEA), 2022; Zurita, 2024).

International actions and protection principles

The International Atomic Energy Agency (IAEA), dispatched by the UN Security Council, verified in September 2022 that all pillars of nuclear safety were compromised, recommending, among other measures, the creation of a protection zone free of military presence, the rotation of inspectors, and the establishment of five concrete principles to prevent catastrophic incidents (International Atomic Energy Agency (IAEA), 2022; Zurita, 2024). However, unrestricted access remains not guaranteed and the plant remains under military and technical risk.

III. India's Position

India's official position is rooted in a fundamental commitment to the peaceful use of nuclear energy and the conviction that the safety and security of nuclear facilities must be preserved unconditionally, regardless of ongoing conflict. Any accident involving nuclear facili-

ties—particularly one of the magnitude of the Zaporizhzhia Nuclear Power Plant (ZNPP)—carries the unacceptable risk of severe transboundary consequences for public health and the environment. Preventing a radiological catastrophe is therefore a technical and humanitarian imperative that must transcend geopolitical differences. India attaches high importance to the safety and security of nuclear facilities and continues to follow developments regarding Ukraine's nuclear power reactors closely (Association, 2025).

A. Principles and priorities

India emphasizes that measures to prevent, mitigate, and respond to nuclear accidents should be technical, apolitical, and guided by humanitarian considerations. This includes ensuring unimpeded access for international inspectors, maintaining transparent information-sharing, and prioritizing civilian protection in and around nuclear sites.

B. International legal framework

The international legal framework governing nuclear safety and the protection of nuclear facilities during armed conflict is anchored in several binding treaties and authoritative instruments. The *Convention on the Physical Protection of Nuclear Material* (CPPNM) establishes core obligations on physical protection, international cooperation, and the criminalization of illicit acts involving nuclear material (United Nations / International Atomic Energy Agency, 1980). Complementarily, the *Convention on Nuclear Safety* (CNS) requires States operating nuclear power plants to uphold stringent safety standards, submit national reports, and implement measures to prevent radiological emergencies (International Atomic Energy Agency (IAEA), 1994b).

The *Convention on Early Notification of a Nuclear Accident* obliges States to promptly alert other States and the IAEA of any nuclear incident with transboundary risk (International Atomic Energy Agency (IAEA), 1986b). This obligation is reinforced by the *Convention on Assistance in the Case of a Nuclear Accident or Radiological Emergency*, which establishes mechanisms for mutual assistance, technical support, and coordinated response in radiological emergencies (International Atomic Energy Agency (IAEA), 1986a).

Under international humanitarian law, Article 56 of Additional Protocol I explicitly protects nuclear facilities as "works and installations containing dangerous forces," prohibiting attacks likely to release such forces and cause severe civilian losses (ICRC / IHL Databases, 1977). The broader rules of Protocol I reaffirm the civilian character of nuclear installations and restrict their targeting. At the individual responsibility level, the *Rome Statute of the International Criminal Court* codifies attacks against installations that may cause widespread, long-term and severe environmental damage as a war crime (International Criminal Court (ICC), 2024).

C. Recent developments and precedents

Recent developments include UN General Assembly Resolution 78/316, which addresses the safety and security of Ukrainian nuclear facilities, including ZNPP, and calls for restraint, full respect for IAEA principles, and unimpeded access for inspectors (United Nations General

Assembly, 2024). These principles align with the IAEA's ongoing monitoring and technical reporting on safety conditions at nuclear facilities (International Atomic Energy Agency (IAEA), 1994a, 1999).

Important confidence-building precedents further reinforce these norms. The *India–Pakistan Agreement on the Prohibition of Attack Against Nuclear Installations*, in force since 1991 and reaffirmed annually, serves as a bilateral model of transparency and mutual restraint (Ministry of External Affairs, Government of India, 2001). In the domain of nuclear security, the IAEA's *INFCIRC/225/Revision 5* provides recommendations on physical protection, sabotage prevention, and threat mitigation for nuclear sites (International Atomic Energy Agency (IAEA), 2011). Complementary confidence-building measures, such as the OSCE's *Vienna Document 2011*, offer practical frameworks for notification, inspection, and risk reduction in areas proximate to critical infrastructure (Organization for Security and Co-operation in Europe (OSCE), 2011). Regional verification models, for example the Argentina–Brazil–ABACC system, demonstrate cooperative oversight mechanisms applicable to shared or contested nuclear environments (ABACC (Brazil-Argentina Agency for Accounting and Control of Nuclear Materials), 1991). India's official position is rooted in its fundamental commitment to the peaceful use of nuclear energy and its conviction that the safety and security of nuclear facilities must be preserved unconditionally, regardless of ongoing conflict. Any accident involving nuclear facilities, particularly one of the magnitude of ZNPP, carries the unacceptable risk of severe transboundary consequences for public health and the environment. Therefore, the Delegation asserts that preventing a radiological catastrophe is a technical and humanitarian imperative that must transcend geopolitical differences. India attaches high importance to ensuring the safety and security of these facilities and continues to carefully follow all developments regarding Ukraine's nuclear power reactors. (Association, 2025)

The international legal framework governing nuclear safety and the protection of nuclear facilities during armed conflict is anchored in several binding treaties and authoritative instruments. The *Convention on the Physical Protection of Nuclear Material* (CPPNM) establishes core obligations on physical protection, international cooperation, and criminalization of illicit acts involving nuclear material (United Nations / International Atomic Energy Agency, 1980). Complementarily, the *Convention on Nuclear Safety* (CNS) requires States operating nuclear power plants to uphold stringent safety standards, submit mandatory national reports, and implement measures to prevent radiological emergencies (International Atomic Energy Agency (IAEA), 1994b).

The *Convention on Early Notification of a Nuclear Accident* obliges States to promptly alert other States and the IAEA of any nuclear incident with transboundary risk (International Atomic Energy Agency (IAEA), 1986b). This is reinforced by the *Convention on Assistance in the Case of a Nuclear Accident or Radiological Emergency*, which establishes mechanisms for mutual assistance, technical support, and coordinated response in radiological emergencies (International Atomic Energy Agency (IAEA), 1986a).

Under international humanitarian law, Article 56 of Additional Protocol I explicitly protects nuclear facilities categorized as "works and installations containing dangerous forces," prohibiting attacks that may release such forces and cause severe civilian losses (ICRC /

IHL Databases, 1977). The broader protections of Protocol I reaffirm the civilian character of nuclear installations and restrict the targeting of such facilities under all circumstances (United Nations / Office on Genocide Prevention, 1977). At the individual responsibility level, the *Rome Statute of the International Criminal Court* codifies attacks against installations that may cause widespread, long-term, and severe environmental damage as war crimes (International Criminal Court (ICC), 2024).

Recent developments also include the adoption of UNGA Resolution 78/316, which specifically addresses the safety and security of Ukrainian nuclear facilities, including the Zaporizhzhia Nuclear Power Plant (ZNPP), calling for restraint, full respect for IAEA principles, and unimpeded access for inspectors (United Nations General Assembly, 2024). These principles align with the IAEA's continuous monitoring and technical reporting on safety conditions at nuclear facilities (International Atomic Energy Agency (IAEA), 1994a, 1999).

Important confidence-building precedents further reinforce these norms. The *India–Pakistan Agreement on the Prohibition of Attack Against Nuclear Installations*, in force since 1991 and reaffirmed annually, serves as a successful bilateral model of transparency and mutual restraint regarding nuclear facilities (Ministry of External Affairs, Government of India, 2001). In the domain of nuclear security, the IAEA's *INFCIRC/225/Revision 5* provides internationally recognized recommendations on physical protection, sabotage prevention, and threat mitigation for nuclear sites (International Atomic Energy Agency (IAEA), 2011). Beyond the nuclear domain, conventional confidence-building tools—such as the OSCE's *Vienna Document 2011*—offer practical frameworks for notification, inspection, and risk reduction relevant to militarized zones near nuclear infrastructure (Organization for Security and Cooperation in Europe (OSCE), 2011). Additionally, regional verification models such as the Argentina–Brazil–ABACC system demonstrate effective cooperative oversight mechanisms applicable to shared or contested nuclear environments (ABACC (Brazil-Argentina Agency for Accounting and Control of Nuclear Materials), 1991).

Official Proposals for Resolving the ZNPP Crisis

Drawing upon three interconnected foundations—the documented technical vulnerabilities at the Zaporizhzhia Nuclear Power Plant (ZNPP), the identified legal deficiencies within existing International Humanitarian Law (IHL), and the proven diplomatic precedents established through India's bilateral nuclear security agreements—the Delegation presents an integrated three-component framework designed to simultaneously resolve the immediate crisis at ZNPP and strengthen global nuclear infrastructure resilience in conflict zones.

This tripartite approach recognizes that effective protection of nuclear facilities in armed conflict requires three complementary pillars working in concert. First, immediate risk containment through verifiable non-attack commitments that halt the deterioration of safety conditions. Second, institutionalization of technical neutrality that ensures operational continuity independent of conflict dynamics. Third, rectification of normative ambiguities in IHL that currently enable interpretations undermining civilian nuclear infrastructure protection. Together, these measures address the crisis comprehensively—from emergency stabilization through long-term systemic reform.

IV. Proposal I: Immediate Adoption of a Protocol of Guaranteed Restraint (PGR) for ZNPP

A. Foundation and Strategic Objectives

To achieve immediate and verifiable compliance with nuclear safety standards, the Delegation calls for the negotiation and adoption of a **Protocol of Guaranteed Restraint** (PGR)—a non-conditional, legally binding instrument specifically tailored to the Zaporizhzhia Nuclear Power Plant. This protocol constitutes a direct response to the facility's extreme vulnerability, where continued exposure to military operations threatens to trigger a catastrophic radiological release with transboundary consequences affecting multiple nations and generations.

The urgency of this proposal stems from the documented deterioration of safety margins at ZNPP. With repeated losses of external power, degraded backup systems, and compromised supply chains, the facility operates dangerously close to conditions that could precipitate core damage. Only guaranteed cessation of military activities in critical zones can arrest this degradation and restore the margin of safety required to prevent disaster.

B. Mandating Reciprocal Commitment

All parties to the conflict must commit formally to this PGR, whose normative architecture should mirror the foundational principle of the India-Pakistan Non-Attack Agreement (NAA). Specifically, the PGR must explicitly affirm that *the catastrophic nature of a radiological release—with its indiscriminate, transboundary, and multi-generational impacts—outweighs any conceivable military advantage derivable from attacking or militarily utilizing the nuclear facility.*

This shared recognition provides a stable foundation for verifiable guarantees of non-attack that remain valid *regardless of shifts in territorial control.* By eliminating conditionality tied to control or occupation status, the PGR transcends the tactical dynamics of the conflict, creating a permanent safety zone anchored in mutual recognition of catastrophic risk. This approach mirrors the India-Pakistan NAA, which has endured through decades of bilateral tension precisely because both parties acknowledge that the consequences of nuclear facility attacks would harm both nations regardless of any immediate tactical gains.

C. Defining a Triple Exclusion Zone

The scope of protection must expand significantly beyond the immediate reactor containment buildings to encompass all critical infrastructure elements required for maintaining continuous safe shutdown conditions. Nuclear safety depends not merely on the structural integrity of reactor vessels but on the uninterrupted functioning of interconnected support systems whose compromise can trigger cascading failures with consequences equivalent to direct reactor damage.

Accordingly, the PGR must guarantee the physical integrity of a **Triple Exclusion Zone** comprising three interconnected protective perimeters:

1. **Primary Reactor Perimeter:** The core zone containing all six reactor units and spent fuel storage facilities. Direct damage to these structures would result in immediate radiological release. This perimeter represents the most critical layer of protection, as any breach would likely exceed the capacity of emergency response systems to prevent catastrophic outcomes.

2. **External Power Supply Corridors:** All transmission line routes for remaining functional off-site power connections, including specifically the Dniprovska and Ferosplavna-1 lines. This inclusion explicitly recognizes that stable electrical supply is *absolutely indispensable* for maintaining active cooling systems. Historical incidents at Fukushima Daiichi and other facilities demonstrate that loss of power, even with intact reactor structures, leads inexorably to core overheating and eventual meltdown. Protection of power infrastructure is therefore functionally equivalent to protection of the reactors themselves.

3. **Critical Water Infrastructure:** All water intake facilities and pumping stations essential for maintaining circulation within the primary and secondary cooling circuits. Without guaranteed access to cooling water sources and operational pumping capacity, thermal integrity cannot be maintained regardless of power availability. The cooling circuit represents the fundamental barrier between normal shutdown conditions and thermal runaway; its protection is therefore non-negotiable for nuclear safety.

This integrated protection concept acknowledges that nuclear safety rests on the continuous, reliable operation of multiple interdependent systems. Protecting only the reactor buildings while allowing attacks on power or water infrastructure creates an illusion of safety that collapses when auxiliary systems fail. The Triple Exclusion Zone addresses this reality by extending protection to encompass the entire critical infrastructure network upon which safe shutdown depends.

D. IAEA Verification and Monitoring Mechanisms

The IAEA Support and Assistance Mission to Zaporizhzhia (ISAMZ) must be granted complete, continuous, and unrestricted access throughout the entire Triple Exclusion Zone to monitor compliance, verify adherence to the PGR, and report violations. This mandate must include explicit authority to verify that military activities have ceased completely within all designated protective perimeters.

Critically, ISAMZ must possess the capacity to report violations immediately and directly to the UN Security Council, ensuring that breaches of the PGR trigger rapid international response. The verification mechanism should include physical presence of IAEA personnel at key nodes within each protective perimeter, continuous remote monitoring through radiological sensors and surveillance systems, and regular inspection protocols that verify the absence of military equipment, fortifications, or offensive operations within protected zones.

V. Proposal II: Institutionalizing Technical Neutrality and Staffing Autonomy through ISAMZ

A. Strategic Rationale for Operational Independence

Long-term safety at ZNPP requires radical depoliticization of essential operations and systematic mitigation of risks associated with operational degradation and conflict-induced logistical gaps. Experience accumulated since hostilities began demonstrates conclusively that dependence on supply chains controlled by belligerent parties introduces critical delays, politicizes inherently technical decisions, and creates vulnerability to arbitrary interruptions that directly compromise nuclear safety.

When procurement of spare parts, delivery of emergency supplies, or deployment of maintenance personnel depends on approval from parties whose primary interests are military rather than technical, safety becomes subordinate to strategic considerations. This subordination is incompatible with the absolute priority that nuclear safety must maintain. Only by establishing institutional independence can the IAEA ensure that safety decisions are made according to technical criteria alone, insulated from the tactical and strategic calculations that necessarily dominate belligerent decision-making.

B. Dedicated Technical Crisis Fund

India urges all Member States—particularly those already contributing voluntarily to the Nuclear Security Fund (NSF)—to establish a **ring-fenced technical crisis fund** exclusively dedicated to enhancing ZNPP resilience. This fund must be managed solely by the IAEA Director General, ensuring its complete insulation from bilateral political pressures or strategic considerations external to nuclear safety imperatives.

The fund should address urgent practical needs including: emergency repairs to critical safety systems, procurement of specialized replacement components for degraded equipment, continuous logistical support for maintaining minimum operational capacity required for safe shutdown conditions, and provision of radiation monitoring equipment necessary for safety verification. By establishing dedicated funding independent of both conflict parties and traditional donor channels that may be subject to political considerations, this mechanism ensures that safety needs are met according to technical requirements rather than political expedience.

C. Mandating Logistical and Staffing Autonomy

The IAEA must receive an explicit, legally binding mandate to coordinate procurement and delivery of all essential safety-related supplies—including emergency generator fuel, specialized spare parts for safety systems, and radiation monitoring equipment—operating *completely independently* of the belligerent parties. This autonomy is crucial for overcoming the inherent vulnerability of supply chains controlled by actors whose primary focus is military success rather than nuclear safety.

The mandate must include authority to establish direct logistical channels, negotiate hu-

manitarian corridors specifically designated for nuclear safety supplies, and coordinate with neutral international actors to guarantee uninterrupted flow of critical resources. Importantly, this autonomy must extend to decisions about supply priorities, delivery schedules, and resource allocation—domains where technical safety considerations must override political or military preferences that might otherwise introduce delays or diversions compromising safety.

The experience at ZNPP has repeatedly demonstrated that reliance on belligerent-controlled logistics leads to dangerous gaps in maintenance, delayed repairs to degraded systems, and periods where backup safety systems operate without adequate redundancy due to parts shortages. Only autonomous IAEA logistics can eliminate these gaps by ensuring that safety needs are addressed according to technical timelines rather than political or military convenience.

D. Establishing a Global Technical Support Pool

Leveraging India's established participation in the IAEA Response and Assistance Network (RANET), the Delegation proposes creation of a **rapidly deployable, internationally verified pool of non-aligned nuclear safety and maintenance specialists**. This pool would be mobilized exclusively under IAEA auspices to address critical staffing gaps and maintenance deficits at ZNPP, thereby mitigating the human factor risk through injection of highly qualified, politically neutral professionals dedicated solely to technical safety considerations.

Current personnel at ZNPP operate under extraordinary stress, with disrupted rotation schedules, interrupted training programs, and the psychological burden of working within an active conflict zone. These conditions degrade human performance—the final layer of defense against operational errors that could trigger accidents. International specialists operating under IAEA authority would supplement local staff, providing both technical expertise and psychological relief through normalized rotation patterns.

Pool members must receive robust security guarantees, functional diplomatic immunity to protect them from detention or coercion by conflict parties, and unrestricted access to all technical areas of the facility. They must operate under strictly technical protocols, completely insulated from military or political considerations, with their sole mandate being maintenance of safety conditions according to international best practices.

VI. Proposal III: Strengthening IHL through Clarification of Article 56 Cessation Clause

A. Identifying the Normative Ambiguity

To close the legal loophole that currently undermines protection of nuclear infrastructure in armed conflict, the international community must formally clarify the permissive conditions contained within Article 56 of Additional Protocol I to the Geneva Conventions. This provision, while establishing baseline protection for installations containing dangerous forces,

includes a cessation clause that has created dangerous interpretive ambiguity.

Specifically, Article 56 permits the loss of protected status when a facility provides "regular, significant, and direct support to military operations." This formulation is sufficiently ambiguous to enable permissive interpretations that fundamentally undermine the humanitarian principle of protecting civilian populations from the release of dangerous forces. Belligerent parties have potentially invoked this clause to justify targeting nuclear facilities based on arguments about indirect contributions to the war effort—most notably, the routine provision of electrical power that may be consumed by military forces or defense industries.

This interpretive flexibility is incompatible with the absolute priority that must be accorded to preventing radiological disasters. Unlike conventional military targets where proportionality assessments may legitimately balance military advantage against civilian harm, nuclear facilities present categorical risks—the potential consequences of radiological release are so severe, indiscriminate, and long-lasting that no military advantage can justify triggering them. The cessation clause therefore requires restrictive interpretation that aligns with this fundamental distinction.

B. UNGA Declaration Initiative

India proposes initiating formal discussions within the United Nations General Assembly to adopt an **authoritative interpretive declaration** or consensus document specifically addressing the protection of Works and Installations Containing Dangerous Forces in armed conflict contexts. This declaration would not require formal treaty amendment—a process that could take decades—but would establish authoritative international consensus on proper interpretation of existing legal obligations.

The primary objective is to reinforce unequivocally the primacy of humanitarian protection against radiological release, establishing that this imperative supersedes tactical or strategic military advantage considerations. By clarifying the proper understanding of Article 56 through a broadly endorsed UNGA declaration, the international community can close the interpretive gap that currently permits attacks on nuclear infrastructure without requiring the lengthy process of negotiating new treaty language.

C. Explicit Restriction on the Cessation Clause

The declaration must establish a **highly restrictive and precisely defined threshold** for triggering cessation of protection under Article 56. Specifically, it must assert unambiguously that:

> *The routine, pre-existing provision of electrical power by large-scale civilian nuclear generating stations—even when such power is consumed by belligerent military forces or critical industries supporting the war effort—shall NOT constitute "regular, significant, and direct support to military operations" sufficient to negate the facility's protected status under Article 56 of Additional Protocol I.*

This clarification addresses the most common justification invoked for targeting nuclear facilities—the claim that electricity generation constitutes military support. By explicitly

excluding routine power generation from the definition of military support, the declaration establishes that nuclear power plants retain protected status based on their civilian character and catastrophic risk potential, regardless of who consumes the electricity they generate.

Cessation of protection must be reserved exclusively for situations involving **demonstrable, specific, and direct military modifications** of the facility itself. Only the following circumstances should suffice to trigger the cessation clause:

- **Weapons Storage:** Use of reactor containment structures, turbine halls, or other facility buildings for storage of ammunition, military equipment, or weapons systems, thereby converting civilian nuclear infrastructure into military logistical facilities.

- **Fortification and Defensive Positions:** Installation of weapons systems, establishment of fortified military positions, or deployment of combat forces within the facility perimeter, transforming the nuclear plant into a military installation rather than a protected civilian facility.

- **Direct Military Modification:** Physical alteration of plant systems for purposes directly related to military operations beyond simple electricity generation, such as conversion of facilities for weapons-relevant material production or integration of plant systems into military command and control networks.

Crucially, the declaration must emphasize that the burden of proof for demonstrating such military modifications rests with the party claiming loss of protected status. Mere proximity to military forces, provision of power to military consumers, or general contribution to a belligerent's war economy cannot suffice to trigger cessation. Only direct, verifiable, and substantial military use of the facility itself—transforming its character from civilian to military—should permit attacks that risk radiological release.

This clarification is essential for eliminating the element of military discretion inherent in the current Article 56 formulation. By establishing objective criteria that can be independently verified, the declaration removes the subjective judgment that currently allows belligerents to self-justify attacks based on debatable claims about indirect military significance. More fundamentally, it enforces the core humanitarian principle that *civilian populations must be protected absolutely from the release of dangerous forces*, and that this imperative cannot be weakened through arguments about economic or indirect military contributions.

VII. Conclusion: The Imperative for Immediate Action

The crisis at the Zaporizhzhia Nuclear Power Plant represents the most severe threat to nuclear security since the advent of civilian nuclear power in armed conflict contexts. This is not hyperbole but sober technical assessment: never before has a large-scale, multi-reactor nuclear facility operated for an extended period within an active combat zone, subjected to repeated attacks on critical infrastructure, and deprived of normal safety support systems. The statistical probability of catastrophic failure increases with each passing month that these conditions persist.

India, operating consistently within its guiding policy of Strategic Autonomy, maintains that technical resolution and humanitarian necessity—rather than geopolitical positioning or alliance considerations—must guide the international response. The Delegation insists on focusing on practical, achievable steps that address the crisis through concrete mechanisms rather than aspirational declarations unsupported by implementation frameworks.

The three proposals presented constitute such an actionable framework: immediate adoption of a binding Protocol of Guaranteed Restraint that halts the deterioration of safety conditions; institutional strengthening of the IAEA's technical mission (ISAMZ) through autonomous funding and staffing that depoliticizes essential operations; and clarification of International Humanitarian Law to eliminate legal ambiguities that currently permit targeting of civilian nuclear infrastructure.

The viability of this approach is demonstrated by existing precedents. The India-Pakistan Non-Attack Agreement has successfully protected nuclear facilities through decades of bilateral tension, multiple crises, and even limited armed conflicts. This agreement persists not because of warm relations between the parties—relations have often been severely strained—but because both sides recognize that the consequences of nuclear facility attacks would harm both nations regardless of any tactical advantages. This same logic applies with even greater force at ZNPP, where radiological release would affect multiple countries across Europe, creating a shared incentive for protection that transcends the bilateral conflict.

Similarly, the IAEA's long history of technical missions in politically complex environments demonstrates that operational autonomy is achievable when member states recognize shared safety interests. The proposed institutional mechanisms build on proven models, adapting them to the unprecedented challenges posed by a large nuclear facility in an active conflict zone.

The international community faces a binary choice with profound implications. We can act decisively now to establish these protection mechanisms—accepting the diplomatic challenges and resource commitments they require—or we can accept the mounting probability of a radiological disaster whose consequences will recognize no political boundaries. The humanitarian, environmental, and economic impacts of such a catastrophe would affect current and future generations across multiple continents, making any diplomatic difficulties associated with implementing protective measures appear trivial in comparison.

The Delegation of India therefore calls upon all Member States to approach this crisis with the urgency and seriousness it demands. The technical vulnerabilities are documented. The legal gaps are identified. The diplomatic precedents exist. What remains is the political will to act before probability becomes reality and the international community confronts a preventable catastrophe that we failed to prevent.

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